Tamil Nadu Electricity Board vs Tamil Nadu Electricity Regulatory ... on 10 December, 2010

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

I.A. No. 279 of 2010 IN
DFR NO. 521 OF 2010

Dated: 10th December , 2010

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

Tamil Nadu Electricity Board ... Appellant (s)
Versus

Tamil Nadu Electricity Regulatory Commission ...Respondent (s)

Counsel for the Appellant(s): Mr. Ramji Srinivasan, Sr. Advocate
Mr. Ashok Panigrahi &
Mr. Zeyaul Haque
Counsel for the Respondent(s):

ORDER

Learned counsel for the Appellant /petitioner seeks permission to withdraw the Appeal in this Appeal as the validity of the Regulations has been questioned which is not permissible as per the decision of the Hon'ble Supreme Court.

Accordingly, the permission is granted. Consequently, this Appeal and Application are dismissed as withdrawn, in view of the decision of the Hon'ble Supreme Court reported in 2010 (4) SCC 603.

(V.J. Talwar) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson
Za/vs